

No. 25-13631

**UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT**

CITADEL SECURITIES LLC,
Petitioner,

v.

U.S. SECURITIES AND EXCHANGE COMMISSION,
Respondent,

INVESTORS EXCHANGE LLC,
Intervenor.

On Petition for Review of a Final Order of the
Securities and Exchange Commission

**REPLY IN SUPPORT OF NOW-UNOPPOSED
MOTION TO RESCHEDULE ORAL ARGUMENT**

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Intervenor Investors Exchange LLC (“IEX”) respectfully submits this reply in further support of its motion to reschedule the oral argument in the above-captioned case, which is now unopposed.

1. IEX’s motion respectfully requests that the Court reschedule the oral argument, which is tentatively calendared for the week of April 27, 2026, to one of six earlier dates in March and April on which counsel for Citadel Securities LLC, the Securities and Exchange Commission, and IEX are all available. Dkt. 44 ¶ 7.

2. The SEC consents. *Id.* ¶ 8. Without explaining its previous refusal to consent, Citadel now states that it has no objection. Dkt. 48 at 1. IEX’s motion is therefore now unopposed.

3. Citadel appears to fault IEX for not filing its motion earlier. *Id.* at 1-2. Citadel ignores that—as IEX explained in the motion—counsel for IEX diligently pursued alternatives that could have made this motion unnecessary, including promptly contacting the Clerk’s office and exploring ways that IEX’s lead counsel might have presented oral argument the week of April 27 notwithstanding the conflict with a multi-week trial starting the same week. Dkt. 44 ¶ 11. IEX would not have had good cause for this request had it made the premature motion that Citadel contemplates.

4. Citadel also urges the Court not to continue the argument to a later date, Dkt. 48 at 2, as if to suggest that IEX seeks to delay this case. But that is exactly

contrary to what IEX actually said. Dkt. 44 ¶ 6 (“In light of the parties’ prior joint request that the Court decide this case by June 15, 2026, *IEX requests that the Court reschedule the oral argument to an earlier date rather than continue the argument to a later date.*” (emphasis added)). IEX requested Citadel’s consent to a mutually agreeable solution to the problem of conflicting court-facing obligations, consistent with the parties’ shared interest in prompt resolution of this case and normal-course professional courtesy. No part of IEX’s request sought or suggested argument at a later date.

5. IEX respectfully reiterates its request, now unopposed, to reschedule the oral argument in this case to one of the following dates: March 11, March 30, April 14, April 15, April 16, or April 17, 2026.

Dated: February 8, 2026

Respectfully submitted,

/s/ William Savitt
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CERTIFICATE OF COMPLIANCE

I certify that this Reply complies with (1) the type-volume limitations of Federal Rule of Appellate Procedure 27(d)(2)(C) because it contains 375 words, excluding any parts exempted by Rule 27(a)(2)(B); and (2) the typeface and type-style requirements of Rule 27(d)(1)(E) because it has been prepared in Microsoft Word in a proportionally spaced typeface using 14-point Times New Roman font.

Dated: February 8, 2026

/s/ William Savitt

William Savitt

CERTIFICATE OF SERVICE

I certify that on February 8, 2026, the foregoing Reply was electronically filed with the United States Court of Appeals for the Eleventh Circuit using the CM/ECF system. I certify that all participants in the case are registered CM/ECF users and that service will be accomplished by the CM/ECF system.

Dated: February 8, 2026

/s/ William Savitt

William Savitt